

BC558325 BC558325

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: BC558325 Hearing Date: August 20, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

RONALD

HILLS,

Plaintiff(s),

vs.

ALAW,

et al.,

Defendant(s).

Case No.:

BC558325

Hearing

Date:

August 20,

2026

[TENTATIVE]
ORDER DENYING MOTION FOR
RECONSIDERATION

I. BACKGROUND

Defendants allegedly executed fraudulent real estate documents, unlawfully recording a deed of trust to Plaintiff Ronald Hills's ("Hills") home. Defendants then improperly sold the property. Hills sued Defendant for 11 causes of action, including fraud.

This action was dismissed on June 7, 2016, pursuant to Code of Civil Procedure section 664.6,[1] with the Court retaining jurisdiction to enforce settlement.

On February 27, 2026, Non-Party Devra Allen ("Allen") filed a motion to enforce settlement. The Court denied the motion on March 26, 2026.

On April 7, 2026, Allen filed the instant motion for reconsideration. Non-party Deutsche Bank National Trust Company ("DBNTC") opposed.

II. LEGAL STANDARD

Section 1008, subdivision (a), requires that a motion for reconsideration be based on new or different facts, circumstances, or law. A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

The moving party "shall state by affidavit . . . what new or different facts, circumstances, or law are claimed to be shown." (§1008, subd. (a).) These requirements set forth "the court's jurisdiction with regard to applications for reconsideration of its orders" (§1008, subd. (e).) Otherwise, "a court acts in excess of

jurisdiction when it grants a motion to reconsider that is not based upon 'new or different facts, circumstances, or law.'"
(Ibid.)

Any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order, file a motion for reconsideration. (§1008, subd. (a).)

Whether "new" facts alleged are sufficient to satisfy the requirements of section 1008, subdivision (b), is a question confided to the sound discretion of the trial court, with which the appellate court will not interfere absent an obvious showing of abuse. (Graham v. Hansen (1982) 128 Cal. App. 3d 965, 971.)

III. discussion

A. Timing Requirements

Pursuant to section 1008, subdivision (a), any motion for reconsideration must be filed within 10 days of service of the order to be reconsidered upon the moving party. The Court served notice of the Court's ruling on the motion to enforce settlement on Allen via mail on March 26, 2026. Although service is complete at the time of mailing, any time period or date prescribed by statute shall be extended five calendar days upon service by mail if the mailing address is within the State of California. (§ 1013, subd. (a).) As Allen's address was within California, the motion for reconsideration needed to be filed and served by April 10, 2026. As this motion was filed on April 7, 2026, this motion is timely. The Court will address the merits of this motion.

B. New or Different Facts

Allen requests the Court reconsider the March 26, 2026, order as Allen asserts she does have standing as the current legal owner of the subject property. The Court may only reconsider an order upon a showing of new or different facts, law, or circumstances. (§ 1008.)

The Court previously ruled that Allen's argument she had standing as successor-in-interest in direct privity with the judgment holder, Hills, was without merit. The Court specifically noted "the

default judgment rendered against Long Beach Mortgage was between it and [Hills]. Allen has not affirmatively established standing or an uncontested legal basis to enforce any judgment in this action, per the requests for judicial notice.” (See 3/26/26 Minute Order.) Allen did not establish she was party to the settlement or to any settlement with enforceable terms, or that section 664.6 extends to the broad relief her motion seeks. (Ibid.)

Here, Allen merely asserts that she has standing to bring the motion because she established that she received and was the transferee of the subject property from Moore, Hill's attorney who was entitled to transfer the property, which Hill was deeded as a result of the settlement. However, this fact is not new to the Court. The Court specifically identified Allen as the “purported current owner of the Subject Property.” (Ibid.) The issue was this is an insufficient legal basis for Allen to enforce a settlement to which Allen was not a party. Allen has provided no new evidence or law to establish that Allen, who allegedly obtained ownership of the property via transfer of real property, has any claim to enforce the 2016 settlement in this case. Allen has also not provided any other settlement to which the Court can enforce settlement.

Mere privity of property ownership does not establish Allen's right to enforce a settlement agreement concerning the same property under different ownership. The statute “ ‘require[s] the signatures of the parties seeking to enforce the agreement under section 664.6 and against whom the agreement is sought to be enforced.’ ” (J.B.B. Inv. Partners, Ltd. v. Fair (2014) 232 Cal. App. 4th 974, 985, quoting Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 305.) The default judgment rendered against LBM was solely between LBM and Hills. Whether Hills (or Moore) divested himself of the real property at issue to Allen is irrelevant to Allen's standing to enforce the judgment.

As Allen failed to provide any new or different facts, circumstances, or law, the Court denies the motion.

IV. CONCLUSION

Devra Allen's motion for reconsideration is therefore DENIED.

DBNTC

is ordered to give notice.

DATED:

August 20, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.